



CHAPTER 2

An Act to validate certain charges in respect of licences under the Wireless Telegraphy Acts, 1904 to 1926, and for purposes connected with the matter aforesaid.

[22nd December, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where before the passing of this Act a payment was received by the Postmaster-General as being money payable in respect of the grant, renewal or variation of a licence under the Wireless Telegraphy Acts, 1904 to 1926 (in this Act referred to as "the former Acts"), or otherwise as being money payable under such a licence, and the payment was not one which the Postmaster-General was authorised to require by virtue of those Acts, the payment shall be deemed to have been lawfully required and received by the Postmaster-General by virtue of those Acts.

Validation
of charges
for wireless
licences.

(2) The preceding subsection shall have effect for the purposes of any proceedings begun on or after the eleventh day of November, nineteen hundred and fifty-four, whether before or after the passing of this Act, but shall not affect any proceedings begun before that day.

(3) Where any proceedings have been begun on or after the eleventh day of November, nineteen hundred and fifty-four, and a final order has been made in the proceedings before the passing of this Act, then if, on the application of a party to those proceedings, the court by which the order was made determines that the order would not have been made if this Act had been in operation when the proceedings were begun, the court shall

rescind the order, and, if any sum has been paid thereunder before the rescission takes effect, shall make an order directing the sum to be repaid.

(4) Where a sum—

(a) was expressed, in a licence issued under the former Acts, or in a licence as re-issued thereunder on a variation of the licence, to be payable on a date falling within the period beginning with the first day of January, nineteen hundred and fifty-three, and ending with the thirty-first day of May, nineteen hundred and fifty-four, or

(b) was expressed to be payable in a notification to the licensee renewing such a licence on a date within that period,

and the sum (whether expressed to be payable unconditionally or subject to any question as to its being authorised by virtue of the former Acts) is not one which the Postmaster-General was authorised to require by virtue of those Acts, then if payment of the sum (in so far as it remains unpaid) is required by or on behalf of the Postmaster-General after the passing of this Act, it shall be deemed to be lawfully required, and the sum (or, as the case may be, the unpaid balance thereof) shall be recoverable by the Crown accordingly.

(5) In this Act “order” includes a judgment and a decree, and references to the making of an order shall be construed accordingly.

Short title
and extent.

2.—(1) This Act may be cited as the Wireless Telegraphy (Validation of Charges) Act, 1954.

(2) It is hereby declared that this Act extends to Northern Ireland.

(3) This Act shall extend to the Channel Islands, and the Royal Courts of the Channel Islands shall register this Act accordingly.

(4) This Act shall extend to the Isle of Man.

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